

SENATE BILL 2197

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 40,
relative to expungements following a pardon.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-107(d)(1), is amended by deleting the language "was convicted of a nonviolent crime if the person".

SECTION 2. Tennessee Code Annotated, Section 40-32-107(d)(1)(A), is amended by deleting the subdivision and substituting:

(A) Petitioned the court in which the petitioner was convicted of the offense and the judge finds the conviction was not for one (1) of the following felony offenses, or an attempt, conspiracy, facilitation, or solicitation to commit one (1) of the following felonies:

- (i) Section 39-13-202 - First degree murder;
- (ii) Section 39-13-210 - Second degree murder;
- (iii) Section 39-13-305 - Especially aggravated kidnapping;
- (iv) Section 39-15-402 - Aggravated child abuse;
- (v) Section 39-13-403 - Especially aggravated robbery;
- (vi) Section 39-13-805 - Commission of act of terrorism; or
- (vii) A sexual offense for which the offender is required to register as a sexual offender or violent sexual offender under chapter 39, part 2 of this title, or any sexual offense involving a minor;

SECTION 3. Tennessee Code Annotated, Section 40-32-108(d)(2), is amended by deleting the subdivision and substituting:

(2) In making a decision on the petition, the court shall weigh the interest of the petitioner against the best interests of justice and public safety. If the petitioner is an

eligible petitioner pursuant to § 40-32-107(a)(1)(A)-(E) and meets the applicable requirements in § 40-32-107, then there is a rebuttable presumption that the petition should be granted. If the petitioner is an eligible petitioner pursuant to § 40-32-107(d), the court shall consider, in weighing the best interests of justice and public safety, whether the offense sought to be expunged was violent and any other relevant factors presented by the petitioner and the district attorney general.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.